

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, MAY 19, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, May 19, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, May 18, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables, LLC

Motion for Contract Revision and Attorneys' Fees

Plaintiff first moves for revision or reformation of the parties' settlement agreement and second for an award of attorneys' fees in the amount of \$671,714 and costs of \$46,146 against defendants Nella Next LLC fka Flyers Sustainable Energy LLC, Auburn Renewables LLC, and Pacific Power Renewables, Inc. ("Settling defendants"). Settling defendants oppose the motion.

Defendants' objections to portions of the declaration of Robert Thurbon and exhibits A through D thereto are overruled. Defendants' objections to portions of the declaration of Peter Estathiu and exhibit A thereto are overruled. Defendants' objections filed April 7, 2026 are overruled.

As to plaintiff's first request for revision or reformation of the parties' settlement agreement, plaintiff relies on cases where a cause of action was pending for reformation. (*Murphy v. Rooney* (1872) 45 Cal. 78; *Kee v. Davis* (1902) 137 Cal. 456.) In contrast, here there is no cause of action for revision or reformation. The motion for revision or reformation is denied.

As to plaintiff's second request for attorneys' fees and costs, the threshold question is whether plaintiff is entitled to recover fees and costs. The court previously denied without prejudice plaintiff's prior motion for fees, as insufficient evidence showing entitlement to fees had been presented. (Law and Motion minutes, Dec. 2, 2025.) In plaintiff's current motion, plaintiff submits the parties' signed settlement agreement which contains an attorneys' fees provision:

Plaintiff is entitled to file a motion for attorney's fees and costs ("Fee Motion") pursuant to Section 28(i) of the PPA and the Settling Defendants may oppose the Fee Motion. The Court's determination of the Fee Motion will be binding upon the Settling Parties and paid within sixty (60) days.

(Decl. Thurbon, Exh. E, sec. 2.5.)

Section 28(i) of the PPA provides:

In the event of any proceeding brought by either party to enforce the terms of or any obligation arising out of this Agreement, the prevailing party shall be entitled to recover all costs and expenses incurred in connection therewith, including reasonable attorney's fees.

(*Ibid.*)

While plaintiff's moving papers argue the parties had actually agreed to a different version of section 2.5, the attorneys' fees provision, the only reasonable interpretation of the parties' agreement that plaintiff may file a motion for attorneys' fees as is in the executed version of section 2.5 is that the parties agreed plaintiff was entitled to seek attorneys' fees. Any other interpretation would render section 2.5 meaningless. While defendants' opposition argues plaintiff is not entitled to fees under the terms of the settlement agreement, the arguments they raise lack merit. This court does not lack jurisdiction over dismissed defendants in this action because the court has retained jurisdiction to enforce the settlement agreement pursuant to Code of Civil Procedure section 664.6. (Order filed Jan. 8, 2026.) This motion is not an impermissible motion for reconsideration because the prior motion was denied without prejudice. (Law and Motion minutes, Dec. 2, 2025.) Defendants also appear to argue there may not be a settlement agreement with the parties. This, however, seems disingenuous, given the executed agreement of the parties and defendants' acknowledgement that the parties have performed the agreement. (Opposition, pp. 5:26–6:4.) The court finds plaintiff is entitled to recovery reasonable attorneys' fees and costs as agreed upon by the parties in the settlement agreement.

The court must address whether the \$671,714 in attorneys' fees and \$46,146 in costs are reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, *supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Robert E. Thurbon and the exhibits thereto. Counsel declares he charges an hourly rate of \$495. The court finds a small reduction is required, given the fair market value of comparable legal services in the area at this time, and finds a reasonable rate is \$400.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Thurbon and Exhibit F attached thereto, which supports 1,383.8 hours from October 2019 to December 2025. The court observes instances where plaintiff has insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the action, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. In light of these observations, a reduction of hours is appropriate and based on its careful review of the invoices presented, the court approves a total of 1,083 hours.

As to costs, plaintiff seeks costs of \$46,146. The invoice provided as Exhibit G to the declaration of counsel Thurbon supports costs in the amount of \$46,146.96. Defendants object to line items 8, 9, 10, and 11. While line item 8 is presented in a block billing format which can make the court's review more difficult, the costs therein appear appropriate. However, line items 9, 10, and 11 are for expert witness fees for experts not ordered by the court. Expert witness costs for experts not ordered by the court are impermissible costs pursuant to Code of Civil Procedure section 1033.5(b)(1). Accordingly, the court will strike costs in the amount of \$37,999.20 (\$1,993.75 for line item 9, \$13,422.95 for line item 10, and \$22,582.50 for line item 11). Costs are approved in the reduced amount of \$8,147.76.

Based on the foregoing, the motion for attorneys' fees and costs is granted in part. Plaintiff is awarded attorneys' fees of \$433,200 and costs in the amount of \$8,147.76 for a total of \$441,347.76 as against settling defendants. Settling defendants shall render payment within 60 days of service of notice of entry of this order.
